25-1223 MONTOYA PALACIOS V. LIGGINS

DECISION BELOW: 2026 WL 1154321

LOWER COURT CASE NUMBER: 26-6251

QUESTION PRESENTED:

The Equal Access to Justice Act (EAJA) provides that, "in any civil action (other than cases sounding in tort)" by or against the federal government, a court shall award to a prevailing party its fees and costs, unless the court finds certain exceptions present. 28 U.S.C. § 2412(d)(1)(A).

The question presented is whether, under EAJA, "any civil action" encompasses an action seeking a writ of habeas corpus to challenge civil immigration detention.

CERT. GRANTED 6/29/2026